

IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF TEXAS — FORT WORTH DIVISION
Copeland v. Weinstein Management Co., Inc., et al.

EXHIBIT

21

**February 13, 2026 Order Striking Plaintiff's Notice
of Appeal in JP03-25-SC00028212**

Legal Element Supported:

Use of Vexatious Litigant Order Plaintiff contends is jurisdictionally defective

Verified Complaint Reference:

¶ 56

[SOURCE DOCUMENT TO BE SUPPLIED BY PLAINTIFF BEFORE FILING]

CASE NO. JP03-25-SC00028212

KATHRYN COPELAND

IN THE JUSTICE COURT

VS

PRECINCT THREE

**WEINSTEIN PROPERTIES / WMCI DALLAS X,
LLC DBA THE BOWERY AT SOUTHSIDE**

TARRANT COUNTY, TEXAS

ORDER

On this 3rd Day of February 2026 came on for hearing Plaintiff's Request for Reasonable ADA Accommodations, and after considering same, the Court finds and hereby orders that the same be GRANTED IN PART AND DENIED IN PART.

The following request is **denied**:

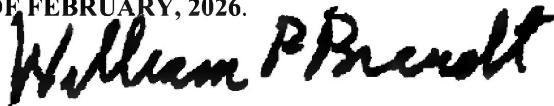
1. **Permission to audio record the hearing for later review *is denied*.**

The following request is **granted**:

2. A brief pause after Defendant's presentation before Plaintiff is required to respond;
3. Permission to submit a short-written response following the hearing if necessary to ensure accurate and complete presentation; and
4. Allowance for slower pacing and clarification of questions as needed.

IT IS THEREFORE, ORDERED, ADJUDGED AND DECREED that Plaintiff's Motion concerning the above numbered and styled cause be and is hereby GRANTED IN PART AND DENIED IN PART.

SIGNED THIS 10TH DAY OF FEBRUARY, 2026.



William P. "Bill" Brandt
Justice of Peace, Precinct Three
Tarrant County, Texas



Resolution on the Papers

From katie@copelandlawtexas.com <katie@copelandlawtexas.com>
To Jennie L. Myers<JLMyers@tarrantcountytexas.gov>
CC JP 3 - Docket Calendar<JP3docketcalendar@tarrantcounty.com>,
John Douglas<john@jadouglaslaw.com>, Glynis Zavarelli<gzavarelli@wandzlaw.com>,
Michelle Sortor<msortor@wandzlaw.com>
Date Friday, February 13th, 2026 at 9:52 AM

Hello,

I was admitted to the hospital yesterday and notified opposing counsel.

I respectfully request that the contested indigency determination be resolved by the County Court at Law, where the appeal is pending, rather than proceeding in Justice Court.

My sworn Statement of Inability to Pay is presumed true, and no evidence has been offered to rebut it. Proceeding with a contested hearing in Justice Court under these circumstances creates unnecessary burden and duplicative proceedings.

If the Court determines that it cannot defer the issue to County Court, I respectfully request that the matter be decided on the papers or, in the alternative, continued in light of my current hospitalization.

Thank you for your consideration.

Respectfully,

Kathryn Copeland
Plaintiff
817-789-8498

----- Original Message -----

On Friday, 02/13/26 at 09:18 Jennie L. Myers <JLMyers@tarrantcountytexas.gov> wrote:

-----Original Appointment-----

From: JP 3 - Docket Calendar <JP3docketcalendar@tarrantcounty.com>

Sent: Friday, February 6, 2026 11:11 AM

To: JP 3 - Docket Calendar; john@jadouglaslaw.com; gzavarelli@wandzlaw.com; Katie Copeland <katie@copelandlawtexas.com>

Cc: Michelle Sortor <msortor@wandzlaw.com>

Subject: JP03-25-SC00028212 Kathryn Copeland vs. Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside (NOTICE OF HEARING ON SIP APPEAL CONTESTED)

When: Friday, February 13, 2026 2:00 PM-3:00 PM (UTC-06:00) Central Time (US & Canada).

Where: Tarrant County Justice of the Peace; <https://txcourts.zoom.us/j/87607880909>

Importance: High

Please be advised that a **HEARING ON CONTESTED STATEMENT OF INABILITY TO PAY APPEAL BOND** for the above referenced case will be held in the Justice Court located at 1400 Main Street Ste 220 Southlake, TX 76092.

Tarrant County Justice Court Three is inviting you to a scheduled Zoom meeting.

Topic: JP03-25-SC00028212 Kathryn Copeland vs. Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside

Time: Feb 13, 2026 02:00 PM Central Time (US and Canada)

Join Zoom Meeting

<https://txcourts.zoom.us/j/87607880909>

Meeting ID: 876 0788 0909

One tap mobile

+13052241968,,87607880909# US

+13092053325,,87607880909# US

Join by SIP

- 87607880909@zoomcrc.com

Join instructions

[https://txcourts.zoom.us/meetings/87607880909/invitations?
signature=UDClmqHVJ8rqVxHYnTj0tWm2VatAQeuxOrtjzZANhMA](https://txcourts.zoom.us/meetings/87607880909/invitations?signature=UDClmqHVJ8rqVxHYnTj0tWm2VatAQeuxOrtjzZANhMA)

Justice of the Peace Pct 3

1400 Main Street #220

Southlake, TX 76092

Phone: 682-732-6589

Fax: 817-850-2397

JP3@tarrantcounty.com

Visit our website for more information and forms:

[Justice of the Peace Court 3 \(tarrantcounty.com\)](https://www.tarrantcounty.com)

FILED
2/13/2026 3:38 PM
Justice of the Peace, Precinct 3
Tarrant County

CAUSE NO. JP03-25-SC00028212

KATHRYN COPELAND,

PLAINTIFF,

V.

WEINSTEIN PROPERTIES/WMCI X,
LLC DBA THE BOWERY AT
SOUTHSIDE,

DEFENDANT.

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IN THE JUSTICE COURT

PRECINCT NO. 3

TARRANT COUNTY, TEXAS

**ORDER GRANTING DEFENDANT'S MOTION TO STRIKE
PRO SE PLAINTIFF'S NOTICE OF APPEAL, PURSUANT TO APPLICABLE
VEXATIOUS LITIGANT ORDER**

ON THIS DAY CAME ON TO BE HEARD, Defendant's Motion to Strike Pro Se Plaintiff's Notice of Appeal, Pursuant to Applicable Vexatious Litigant Order. The Court, having considered Defendant's Motion to Strike Pro Se Plaintiff's Notice of Appeal, Pursuant to Applicable Vexatious Litigant Order is of the opinion that same should be **GRANTED**.

IT IS THEREFORE ORDERED, ADJUDGED, AND DECREED that Defendant's Motion to Strike Pro Se Plaintiff's Notice of Appeal, Pursuant to Applicable Vexatious Litigant Order is **GRANTED**.

IT IS FURTHER ORDERED, ADJUDGED, AND DECREED that Plaintiff's Notice of Appeal is **STRICKEN**, and as such, has no legal force or effect.

SIGNED THIS 13th day of February, 2026.


PRESIDING JUDGE

CASE NO. JP03-25-SC00028212

KATHRYN COPELAND

IN THE JUSTICE COURT

VS

PRECINCT THREE

WEINSTEIN PROPERTIES / WMC
DALLAS X, LLC DBA THE BOWERY
AT SOUTHSIDE

TARRANT COUNTY, TEXAS

ORDER

ON THIS 19TH DAY OF MARCH 2026 CAME ON FOR HEARING PLAINTIFF(S)

MOTION TO VACATE ORDER STRIKING NOTICE OF APPEAL & REINSTATE

APPEAL, AND AFTER CONSIDERING SAME, THE COURT FINDS AND HEREBY
ORDERS THAT THE SAME BE DENIED.

IT IS THEREFORE, ORDERED, ADJUDGED AND DECREED THAT PLAINTIFF(S)
MOTION CONCERNING THE ABOVE NUMBERED AND STYLED CAUSE BE AND IS
HEREBY DENIED.

SIGNED THIS 19TH DAY OF MARCH, 2026.



WILLIAM P. "BILL" BRANDT
JUSTICE OF THE PEACE, PRECINCT THREE
TARRANT COUNTY, TEXAS



REGISTER OF ACTIONS
CASE No. JP03-25-SC00028212

Kathryn Copeland vs. Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside
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Case Type: **EFile Small Claims**
Date Filed: **08/21/2025**
Location: **JP No. 3**

PARTY INFORMATION

Defendant	Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside 3120 Sabre Drive, Suite 170 Southlake, TX 76092	Lead Attorneys GLYNIS ZAVARELLI <i>Retained</i> 469-665-9100(W)
Plaintiff	Copeland, Kathryn	JOHN A DOUGLAS <i>Retained</i> 945-544-8650(W)

EVENTS & ORDERS OF THE COURT

	DISPOSITIONS
01/14/2026	Judgment for Defendant (Judicial Officer: Brandt, William P. "Bill")
	OTHER EVENTS AND HEARINGS
08/21/2025	Original Petition Filed (OCA Opening)
08/21/2025	Proposed Order <i>Proposed Order</i>
08/21/2025	EFile Original Petition Document <i>Small Claims Petition for Retaliation under Texas Property Code 92.331 / John@JADouglasLaw.com</i>
08/21/2025	Copies Requested <i>VIA EMAIL - BY COURTNEY W/WENTZ & ZAVARELLI LLP REQUESTING COPY OF PROPOSED ORDER</i>
08/21/2025	Exhibit(s) Filed By Plaintiff <i>NOTICE LETTER TO BOWERY</i>
08/21/2025	Exhibit(s) Filed By Plaintiff <i>MOLD NOTIFICATION WITH HEALTH DETAILS</i>
08/21/2025	Exhibit(s) Filed By Plaintiff <i>MAINTENANCE REPORTS REGARDING MOLD</i>
08/21/2025	Exhibit(s) Filed By Plaintiff <i>RENT PAYMENTS LEDGER</i>
08/21/2025	Exhibit(s) Filed By Plaintiff <i>WITNESS STATMENT/PHOTOS</i>
08/21/2025	Exhibit(s) Filed By Plaintiff <i>LEASE AND RENEWAL</i>
08/21/2025	Exhibit(s) Filed By Plaintiff <i>REPLY FROM BOWERY/MAINTENANCE REQUEST REGARDING ROACH/SPOILIATION LETTER TO BOWERY AND ADA REQUEST LETTER/SECOND NOTICE LETTER TO BOWERY AND SERVPRO</i>
08/21/2025	Copies Emailed
08/22/2025	Motion of Recusal Filed by the Court
08/22/2025	Order of Recusal Entered
08/22/2025	Recusal Order Sent to the County Judge for Re-assignment
08/22/2025	Emailed <i>COPY OF LETTER, MOTION AND ORDER TO COUNTY JUDGE FOR REASSIGNMENT</i>
08/25/2025	Copies Requested
08/26/2025	Copies Emailed
08/26/2025	Answer Filed <i>Defendant's Original Answer, Jury Demand, and Request for Injunctive Relief by Defendant. MB</i> Party: Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside Party: ZAVARELLI, GLYNIS
08/26/2025	Notice of Vacation Filed <i>Correspondence Regarding Family Medical Leave (09/02 - 09/09)</i> Party: ZAVARELLI, GLYNIS
08/28/2025	Letter Received - County Judge Re-Assigning Case on Recusal <i>JUSTICE OF THE PEACE, PCT 3</i>
08/29/2025	Jury Request Made <i>JURY FEES NOT PAID</i> Party: Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside
08/29/2025	Transcript of Proceedings Prepared
08/29/2025	Mailed/Emailed Letter to all Parties - Case Transferred To <i>TARRANT COUNTY - JP3</i>
08/29/2025	Case Transferred to Another Court <i>JP3</i>
09/02/2025	Case Transferred from Another Court (OCA Opening) <i>(JP04-25-SC00012943)</i>

09/02/2025 **Comments**
 *****END OF TRANSFER*****

09/02/2025 **Notice of Hearing Mailed/Emailed**
 (TRANSFERRED CASE) PRE-TRIAL HEARING ON 10-27-25 @ 1:00PM IN SOUTHLAKE; JLM

09/02/2025 **Jury Fees Paid**
 \$22 FEE BY DEFN VIA EFILE. MB
 Party: Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside
 Party: ZAVARELLI, GLYNIS

09/08/2025 **Motion Filed**
 Plaintiffs Motion to Strike Immaterial, Impertinent, and Scandalous Material from Defendants Original Answer

09/11/2025 **Amended Original Answer Filed**
 Defendant's Amended Answer, Jury Demand and Request for Injunctive Relief. MB
 Party: Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside
 Party: ZAVARELLI, GLYNIS

09/19/2025 **Amended Original Answer Filed**
 Defendant's Second Amended Answer and Jury Demand. MB
 Party: Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside
 Party: ZAVARELLI, GLYNIS

10/20/2025 **Amended Original Answer Filed**
 Defendants' Third Amended Answer and Jury Demand. MB
 Party: Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside
 Party: ZAVARELLI, GLYNIS

10/20/2025 **Notice**
 Family Medical Emergency Letter for Defn Atty Lead Counsel. MB
 Party: ZAVARELLI, GLYNIS

10/20/2025 **Order Granting Motion for Continuance Entered**
 JLM

10/20/2025 **Notice of Hearing Mailed/Emailed**
 ON DEFN MTN TO TRANSFER ON 11-19-25 @ 2:30PM IN SOUTHLAKE; JLM

10/21/2025 **Defendant Filed**
 Motion to Conduct Limited Discovery. MB

11/07/2025 **Defendant Filed Notice of Vacation Schedule**
 DEFN UNAVAILABLE NOVEMBER 7-14, 2025. MB
 Party: ZAVARELLI, GLYNIS

11/17/2025 **Answer Filed**
 Defendant's Fourth Amended Answer, and Jury Demand. MB
 Party: Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside
 Party: ZAVARELLI, GLYNIS

11/17/2025 **Defendant Filed**
 Response to Plaintiff's Motion to Strike. MB

11/17/2025 **Motion to Strike Filed by Plaintiff/Plaintiff's Attorney**
 to Strike Immaterial, Impertinent, and Scandalous Material from Defendants Fourth Amended Answer. MB

11/17/2025 **Proposed Order**
 Granting Plaintiff's Motion to Strike Immaterial, Impertinent, and Scandalous Material from Defendants Fourth Amended Answer and Jury Demand. MB

11/18/2025 **Defendant Filed**
 Response to Plaintiff's Motion to Strike- Pertaining to Defendant's Fourth Amended Answer. MB

11/19/2025 **CANCELED Motions Hearing** (2:30 PM) (Judicial Officer Brandt, William P. "Bill")
 Continuance Granted
 TRANSFER CASE
 10/27/2025 Continued to 11/19/2025 - Attorney Unavailable - Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside

11/19/2025 **Motion For Continuance Filed**
 Plaintiffs Emergency Motion for Continuance. MB

11/19/2025 **Proposed Order**
 Granting Continuance. MB

11/19/2025 **Order Granting Motion for Continuance Entered**
 SIGNED BY JUDGE. COPY EMAILED TO BOTH PARTIES. MB

11/19/2025 **Emailed**
 ORDER GRANTING CONTINUANCE TO BOTH PARTIES. MB

11/20/2025 **Defendant Filed**
 Response to Plaintiff's Emergency Motion for Continuance of November 19, 2025 Status Hearing and Defendant's Request Regarding Date for Re Set. MB

11/21/2025 **CANCELED To Be Set for Hearing** (2:00 PM) ()
 Other
 Motions Hearing

12/01/2025 **Defendant Filed Notice of Vacation Schedule**
 December 19, 2025 to January 2, 2026. MB
 Party: Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside
 Party: ZAVARELLI, GLYNIS

12/04/2025 **Notice of Hearing Mailed/Emailed**
 ON PLTF'S MTN TO STRIKE AND PRE-TRIAL HEARING ON 1.14.26 @ @ 1:00PM IN SOUTHLAKE; JLM

12/15/2025 **Plaintiff Filed Notice of Vacation Schedule**
 PLTF ATTY. DECEMBER 15, 2025 TO JANUARY 2, 2026. MB
 Party: DOUGLAS, JOHN A

12/26/2025 **Notice of Filing of Business Records Affidavit Filed**
 BY PLTF. MB
 Party: Copeland, Kathryn
 Party: DOUGLAS, JOHN A

12/26/2025 **Notice**
 of Filing Medical Documentation in Support of ADA Accomodation Request. MB
 Party: Copeland, Kathryn
 Party: DOUGLAS, JOHN A

01/05/2026 **Motion Filed**

01/09/2026 **Motion Filed**
Plaintiff Status Update and ADA Notice, and Request for Ruling by Submission. MB
 Party: Copeland, Kathryn
 Party: DOUGLAS, JOHN A

01/13/2026 **Motion Filed**
Weinstein's Response to Plaintiff's Status Update, ADA Notice and Request for Ruling by Submission and Defendant's Motion for Transfer/Consolidation with Pending Litigation in the 141st Judicial District Court. MB
 Party: Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside
 Party: ZAVARELLI, GLYNIS

01/14/2026 **Motions Hearing** (1:00 PM) (Judicial Officer Brandt, William P. "Bill")

01/14/2026 **Notice**
Defendant's Notice of Filing Documents in Support of Defendant's Motion for Transfer/Consolidation with Pending Litigation in the 141st Judicial District Court

01/14/2026 **Order Entered on Case**
JUDGMENT FOR DEFENDANT; PARTIES TO BEAR THEIR COSTS; JLM

01/14/2026 **Emailed**
COPY OF JUDGMENT; JLM

01/20/2026 **Notice of Appeal Filed**
BY PLTF VIA EFILE. MB
 Party: Copeland, Kathryn
 Party: DOUGLAS, JOHN A

01/20/2026 **Motion Filed**
Defendant's Motion to Strike Pro Se Plaintiff's Notice of Appeal Pursuant to Applicable Vexatious Litigant Order. MB
 Party: Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside
 Party: ZAVARELLI, GLYNIS

01/21/2026 **Court Notes**
APPEAL INFORMATION SENT TO PLTF ATTY; JLM

02/02/2026 **SC/DC Case - Statement of Inability to Pay for Appeal Filed**
VIA E-MAIL; JLM

02/02/2026 **Mailed/Emailed PLTF Notice of SIP on Appeal Filed**
(DEFN) JLM

02/03/2026 **Plaintiff Filed**
PLAINTIFF'S REQUEST FOR REASONABLE ADA ACCOMMODATIONS (Anticipated Indigency Contest Hearing) JLM
 Party: Copeland, Kathryn

02/04/2026 **Defendant Filed**
DOES WISH TO CONTEST PLAINTIFF'S SIP APPEAL; JLM

02/06/2026 **Statement of Inability to Pay for Appeal Contested**
JLM

02/06/2026 **Notice of Hearing Mailed/Emailed**
ON CONTESTED SIP APPEAL ON 2.11.26 @ 1:30PM IN SOUTHLAKE; JLM

02/09/2026 **CANCELED Clerk Follow Up/3 Months** (9:00 AM) ()
Other
SIP NOT CONTESTED;SEND TO CC@LAW

02/10/2026 **Order Entered on Case**
ORDER GRANTING IN PART AND DENYING IN PART PLTF'S REQUET FOR REASONABLE ADA ACCOMMODATIONS; JLM

02/10/2026 **Emailed**
COPY OF ORDER ON PLTF'S REQUEST FOR REASONABLE ADA COOMMODATIONS

02/12/2026 **Defendant Filed Notice of Vacation Schedule**
March 30, 2026 to April 3, 2026. MB
 Party: Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside
 Party: ZAVARELLI, GLYNIS

02/13/2026 **Hearing** (2:00 PM) (Judicial Officer Brandt, William P. "Bill")
02/11/2026 Reset by Court to 02/13/2026

02/13/2026 **Proposed Order**
Order Granting Defendant's Motion to Strike Pro Se Plaintiff's Notice of Appeal, Pursuant to Applicable Vexatious Litigant Order

02/13/2026 **Order Entered on Case**
SIGNED ORDER GRANTING DEFN'S MTN TO STRIKE PRO SE PLAINTIFF'S NOTICE OF APPEAL, PURSUANT TO APPLICABLE VEXATIOUS LITIGANT ORDER; JLM

02/13/2026 **Emailed**
COPY OF ORDER ;JLM

03/17/2026 **Motion Filed**
to Vacate Order Striking Notice of Appeal and Reinstate Appeal by Pltf. MB

03/17/2026 **Proposed Order**
Granting Motion to Vacate. MB

03/19/2026 **Order Entered on Case**
ORDER DENYING MOTION TO VACATE ORDER STRIKING NOTICE OF APPEAL & REINSTATE APPEAL; JLM

03/19/2026 **Emailed**
ORDER DENY MTN TO STRIKE; JLM

04/13/2026 **Plaintiff Filed**
Verified Notice of Void Vexatious Litigant Orders; JLM
 Party: Copeland, Kathryn
 Party: DOUGLAS, JOHN A

FINANCIAL INFORMATION

Defendant Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside
 Total Financial Assessment
 Total Payments and Credits
Balance Due as of 04/29/2026

22.00
 22.00
0.00

09/02/2025	Transaction Assessment			22.00
09/02/2025	Internet Payment	Receipt # JP3-2025-05687	Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside	(22.00)
	Plaintiff Copeland, Kathryn			
	Total Financial Assessment			54.00
	Total Payments and Credits			54.00
	Balance Due as of 04/29/2026			0.00
08/21/2025	Transaction Assessment			54.00
08/21/2025	Internet Payment	Receipt # JP4-2025-7562	Copeland, Kathryn	(33.00)
08/21/2025	State Credit			(21.00)